

Arimadam Singh v. State of U.P.

Allahabad High Court · Division Bench · 20 September 2017 · Writ-C No. 44596 of 2017 · Writ - C No. 44596 of 2017 · **Writ disposed; EE to order 6.14 instalments; recovery subject thereto.**

HEADNOTE

A consumer facing recovery who offers to pay and seeks instalments is to apply to the Executive Engineer under clause 6.14 of the U.P. Electricity Supply Code, 2005. The writ was disposed with a direction that, on a certified copy being filed within one week, the Executive Engineer shall within two weeks pass an appropriate order providing such instalments as may be necessary on the facts; recovery remains subject to that order.

FACTUAL SUMMARY

The petitioner, Arimadam Singh, approached the Allahabad High Court against recovery of electricity dues by the electricity department. After the writ was heard, his counsel stated that he was prepared to deposit the amount sought to be recovered and prayed that payment be allowed in instalments. Counsel for the electricity department pointed to clause 6.14 of the U.P. Electricity Supply Code, 2005, under which the Executive Engineer may grant an instalment facility for such payments.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for recovery of dues

HOLDING

Clause 6.14 of the U.P. Electricity Supply Code, 2005 confers on the Executive Engineer the power to allow payment of recovered dues in instalments. The High Court did not itself fix an instalment plan; it directed that if a certified copy of the order is filed before the Executive Engineer within one week, the Executive Engineer shall within two weeks pass an appropriate order providing such instalments as may be necessary on the facts, and that recovery proceedings shall remain subject to that order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — QUANTUM OF DUES AND NUMBER OR TERMS OF INSTALMENTS

Left to the Executive Engineer under clause 6.14. ¶ 1